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February 11, 2025

By: Pugh

An Act relating to workforce development; amending Section 5, Chapter 361, O.S.L. 2023 (40 O.S. Supp. 2024, Section 904), which relates to the powers, duties, and responsibilities of the Oklahoma Workforce Commission; expanding duties; authorizing the Commission to implement certain programs to address certain needs; allowing Commission to utilize certain funds; providing for promulgation of rules; updating statutory references; updating statutory language; and providing an effective date.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY Section 5, Chapter 361, O.S.L.
2023 (40 O.S. Supp. 2024, Section 904), is amended to read as
follows:

Section 904. The Oklahoma Workforce Commission shall have the following powers, duties, and responsibilities:

1. To administer the provisions of ~~this act~~ the Oklahoma Workforce Transformation Act or any duty as directed by statute;
2. To establish an office for the Commission within this state;
3. To elect whatever other officers may be necessary to direct operations of the Commission;

1 4. To employ or contract for personnel and administrative
2 support as the Commission deems appropriate to carry out the purpose
3 and provisions of ~~this act~~ the Oklahoma Workforce Transformation
4 Act, including, but not limited to, a nonprofit corporation to carry
5 out the Commission's objectives, an ~~Executive Director~~ executive
6 director or other chief executive officer, and any other employees
7 or contractors the Commission deems appropriate, and to prescribe
8 their duties and fix their compensation;

9 5. To administer the Workforce Coordination Revolving Fund
10 created in Section 255.4 of Title 62 of the Oklahoma Statutes;

11 6. To approve or disapprove the budget of the Commission;

12 7. To promulgate rules to carry out the provisions of ~~this act~~
13 the Oklahoma Workforce Transformation Act;

14 8. To enter into contracts or agreements for studies,
15 professional services, grant administration and procurement,
16 research projects, supplies, or any other services the Commission
17 deems necessary to carry out its purpose, and to incur those
18 expenses necessary to carry out those purposes;

19 9. To cooperate with any private, local, state, or national
20 commission, organization, agency, or group and to make contracts and
21 agreements for joint programs beneficial to Oklahoma's workforce
22 development efforts;

23 10. To accept donations, grants, contributions, and gifts from
24 any public or private source and deposit such in the Workforce

1 Coordination Revolving Fund, created in Section 255.4 of Title 62 of
2 the Oklahoma Statutes;

3 11. To oversee and direct to the extent permitted by law the
4 activities and administration of the Governor's Council for
5 Workforce and Economic Development, including, but not limited to,
6 the creation and submission of state plans to the federal government
7 pursuant to the provisions of the Workforce Innovation and
8 Opportunity Act;

9 12. To collect data from federal, state, and local agencies,
10 departments, educational institutions, boards, commissions, or any
11 other entities including, but not limited to:

- 12 a. number of participants in workforce development
- 13 programming,
- 14 b. cost per participant,
- 15 c. wages before and after participation in programs,
- 16 d. degree or certificate conferred on each participant,
- 17 e. number of jobs open needing degrees or certificates,
- 18 f. labor force and economic information, and
- 19 g. any other information the Commission deems appropriate
- 20 to guide funding decisions, facilitate its work or the
- 21 work of workforce development entities in the state,
- 22 or to understand the impact of the state's workforce
- 23 efforts and programming;
- 24

1 13. To create and maintain a public dashboard and create
2 reports with data concerning workforce development efforts in the
3 state. All state and local agencies, departments, educational
4 institutions, boards, commissions, and other public entities shall
5 cooperate with information and data requests from the Commission or
6 its designees. It is the intent of the Legislature that the
7 Oklahoma Workforce Commission serve as the centralized data and
8 information repository for workforce development activities for the
9 state; ~~and~~

10 14. To make recommendations to the Legislature to improve
11 workforce development programs in the state; and

12 15. To implement programs designed to expand workforce
13 development.

14 SECTION 2. NEW LAW A new section of law to be codified
15 in the Oklahoma Statutes as Section 905 of Title 40, unless there is
16 created a duplication in numbering, reads as follows:

17 A. Pursuant to the provisions of Section 904 of Title 40 of the
18 Oklahoma Statutes, the Oklahoma Workforce Commission shall implement
19 programs in this state to address the following:

20 1. High demand and critical occupation workforce development,
21 which may:

22 a. identify the needs of institutions of higher education
23 suited for certain critical workforce areas,

24 b. identify outcomes based on funding,

1 c. scholarship match, and

2 d. improve program capacity development;

3 2. Work-based learning opportunities, which may include, but
4 not be limited to, internships, apprenticeships, and other career
5 exploration and exposure; and

6 3. K-12 district innovation for workforce success, which may:

7 a. enhance pathway development,

8 b. utilize development grants for basic skills
9 development,

10 c. utilize regulatory innovation grants, and

11 d. develop career-connected high schools.

12 B. The Commission may administer these programs through funds
13 in the Workforce Coordination Revolving Fund created in Section
14 255.4 of Title 62 of the Oklahoma Statutes.

15 C. The Commission shall promulgate rules necessary to implement
16 the provisions of this section.

17 SECTION 3. This act shall become effective November 1, 2025.

18 COMMITTEE REPORT BY: COMMITTEE ON ECONOMIC DEVELOPMENT, WORKFORCE
19 AND TOURISM
February 11, 2025 - DO PASS